PURCHASE AND SALE AGREEMENT

Eastlake Ridgeline Collegiate Commons | Birmingham, AL

Seller	Lakeside Family Partnership
Buyer	Anchorage Meadow Partners
Property	Eastlake Ridgeline Collegiate Commons, 1053 Railroad Avenue, Birmingham, AL 85938
Purchase Price	$39,440,000
Effective Date	June 25, 2022

1. Purchase and Sale. Seller agrees to sell and Buyer agrees to purchase the Property known as Eastlake Ridgeline Collegiate Commons, located at 1053 Railroad Avenue, Birmingham, AL 85938, consisting of 343 beds, together with all improvements, fixtures and appurtenances. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of AL. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

2. Purchase Price. The purchase price for the Property shall be $39,440,000, payable at Closing by wire transfer of immediately available funds, subject to the prorations and adjustments set forth herein. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Time is of the essence with respect to each and every provision of this instrument.

3. Earnest Money Deposit. Within 18 business days after the Effective Date, Buyer shall deposit $789,000 with the Escrow Agent. The deposit shall become non-refundable upon expiration of the Due Diligence Period except as expressly provided. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

4. Due Diligence Period. Buyer shall have 9 days following the Effective Date to inspect the Property, review the Due Diligence Materials and terminate this Agreement in its sole discretion. Time is of the essence with respect to each and every provision of this instrument. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

5. Title and Survey. Seller shall convey good and marketable fee simple title to the Property by special warranty deed, subject only to the Permitted Exceptions. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of AL.

6. Representations and Warranties of Seller. Seller represents that the rent roll delivered to Buyer is true, correct and complete in all material respects and that there are no pending or threatened condemnation or litigation proceedings. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of AL.

7. Operation of the Property. Between the Effective Date and Closing, Seller shall operate the Property in the ordinary course and shall not enter into new leases or service contracts without Buyer's approval. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Time is of the essence with respect to each and every provision of this instrument.

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8. Conditions to Closing. Buyer's obligation to close is conditioned upon delivery of tenant estoppel certificates from tenants representing at least 75% of leased area and issuance of the title policy. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

9. Prorations. Rents, real estate taxes, utilities and operating expenses shall be prorated as of 11:59 p.m. on the day preceding Closing based on the actual number of days in the period. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

10. Closing. Closing shall occur on or before August 9, 2022, through escrow with Evergreen Title Services. Possession shall be delivered to Buyer at Closing. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

11. Casualty and Condemnation. If the Property is materially damaged prior to Closing, Buyer may terminate this Agreement or proceed to close and receive an assignment of insurance proceeds. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

12. Purchase and Sale. Seller agrees to sell and Buyer agrees to purchase the Property known as Eastlake Ridgeline Collegiate Commons, located at 1053 Railroad Avenue, Birmingham, AL 85938, consisting of 343 beds, together with all improvements, fixtures and appurtenances. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of AL. Time is of the essence with respect to each and every provision of this instrument.

13. Purchase Price. The purchase price for the Property shall be $39,440,000, payable at Closing by wire transfer of immediately available funds, subject to the prorations and adjustments set forth herein. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

14. Earnest Money Deposit. Within 6 business days after the Effective Date, Buyer shall deposit $789,000 with the Escrow Agent. The deposit shall become non-refundable upon expiration of the Due Diligence Period except as expressly provided. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

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Signatures

IN WITNESS WHEREOF, the parties have executed this instrument as of the date first written above.

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Lakeside Family Partnership

By: Rachel Xu Title: Authorized Signatory Date: 06/25/2022

_____

Aisha Vasquez

By: Susan Walker Title: Manager Date: 06/25/2022

Exhibit A - Property

Eastlake Ridgeline Collegiate Commons, 1053 Railroad Avenue, Birmingham, AL 85938. Parcel containing approximately 10.85 acres, together with all improvements thereon.

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